

COMMITTEE ON REGULATORY AFFAIRS AND GOVERNMENT EFFICIENCY
SENATE AMENDMENTS TO S.B. 1665
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 41, chapter 4, article 4, Arizona Revised
3 Statutes, is amended by adding section 41-755, to read:

4 41-755. Hiring practices; grades; appeal; applicability

5 A. NOTWITHSTANDING ANY OTHER LAW, EACH STATE AGENCY SHALL ADOPT A
6 STANDARDIZED HIRING PROCESS FOR ALL EMPLOYEE POSITIONS. THIS PROCESS
7 SHALL INCLUDE THE FOLLOWING GRADING COMPONENTS:

8 1. WEIGHTED GRADE.

9 2. INTERVIEW PANEL GRADE.

10 3. OVERALL GRADE.

11 B. TO CALCULATE THE WEIGHTED GRADE OF A CANDIDATE, A STATE AGENCY
12 MUST TAKE INTO ACCOUNT THE LENGTH AND RELEVANCE OF THE CANDIDATE'S
13 EXPERIENCE AND EDUCATION AND ANY SPECIFIC SKILLS AND CERTIFICATIONS THE
14 CANDIDATE POSSESSES.

15 C. AN ADDITIONAL NUMERIC SCORE OR GRADE SHALL BE ASSIGNED TO EACH
16 CANDIDATE WHO PARTICIPATES IN A FORMAL INTERVIEW. A PANEL CONSISTING OF
17 AT LEAST TWO INTERVIEWERS SHALL CONDUCT THE INTERVIEW. THE SCORING
18 CRITERIA FOR THE INTERVIEW SHALL BE PUBLISHED IN THE JOB POSTING.

19 D. THE WEIGHTED GRADE AND THE INTERVIEW PANEL GRADE SHALL BE
20 COMBINED TO PRODUCE A FINAL, OVERALL GRADE OUT OF ONE HUNDRED FOR EACH
21 CANDIDATE. THE METHOD FOR COMBINING THESE GRADES SHALL BE TRANSPARENT AND
22 PUBLISHED IN THE JOB POSTING.

23 E. THIS STATE AND EACH AGENCY SHALL COMPLETE THE ENTIRE HIRING
24 PROCESS, FROM THE INITIAL JOB POSTING TO THE SELECTION OF THE FINAL
25 CANDIDATE, WITHIN NINETY DAYS. IF THE HIRING PROCESS EXCEEDS NINETY DAYS,
26 THE STATE PERSONNEL BOARD SHALL INTERVENE TO ENSURE THE COMPLETION OF THE
27 HIRING PROCESS AND THE SELECTION OF A FINAL CANDIDATE.

1 F. A STATE AGENCY SHALL PROVIDE WRITTEN NOTICE TO EACH CANDIDATE
2 WHO IS ELIMINATED FROM HIRING CONSIDERATION. THE NOTICE MUST IDENTIFY THE
3 REASON THE CANDIDATE DID NOT MEET THE REQUIREMENTS FOR THE JOB POSTING.
4 ANY CANDIDATE WHO PARTICIPATED IN BOTH THE WEIGHTED GRADE AND INTERVIEW
5 PANEL GRADE AND WAS NOT HIRED BY A STATE AGENCY HAS THE RIGHT TO APPEAL A
6 HIRING DECISION TO THE STATE PERSONNEL BOARD IF [~~At least~~] [BOTH] OF THE
7 FOLLOWING OCCUR:

8 1. THE APPEAL IS MADE WITHIN THREE BUSINESS DAYS AFTER THE FINAL
9 HIRING DECISION ANNOUNCEMENT.

10 2. THE APPEAL IS BASED ON A CLAIM THAT THE HIRING PROCESS FOR ALL
11 POSITIONS WAS NOT FOLLOWED OR THE STATE AGENCY'S HIRING OF ANOTHER
12 CANDIDATE WAS ARBITRARY, GIVEN THE HIRED CANDIDATE'S OVERALL GRADE, OR
13 THAT THE PROCESS EXCEEDED NINETY DAYS.

14 G. THE STATE PERSONNEL BOARD SHALL REVIEW THE GRADES AND
15 DOCUMENTATION OF BOTH THE APPEALING CANDIDATE AND THE SELECTED CANDIDATE
16 TO DETERMINE WHETHER THE HIRING DECISION WAS IN VIOLATION OF THIS SECTION.
17 IF A VIOLATION IS FOUND, THE STATE PERSONNEL BOARD MAY DIRECT THE HIRING
18 AGENCY TO RECONSIDER THE DECISION OR TAKE ANY OTHER APPROPRIATE ACTION,
19 INCLUDING APPOINTING A HEARING OFFICER TO CONDUCT AN ADMINISTRATIVE
20 REVIEW.

21 H. THE STATE PERSONNEL BOARD MAY ALSO REQUIRE A STATE AGENCY TO DO
22 ALL OF THE FOLLOWING:

23 1. REOPEN THE HIRING PROCESS.

24 2. MODIFY THE JOB POSTING.

25 3. TAKE ANY OTHER ACTIONS AS NECESSARY TO COMPLY WITH THIS SECTION.

26 I. THIS SECTION DOES NOT APPLY TO ANY OF THE FOLLOWING:

27 1. THE GOVERNOR'S OFFICE.

28 2. ANY MEMBERS OF A BOARD OR COMMISSION APPOINTED BY THE GOVERNOR.

29 J. ANY CANDIDATE MAY BE DIRECTLY HIRED BY A STATE AGENCY, SO LONG
30 AS THE CANDIDATE MEETS A MINIMUM WEIGHTED NUMERIC GRADE OF NINETY TO BE
31 CONSIDERED FOR A DIRECT HIRE. THE HIRING DECISION AND SPECIFIC POSITION
32 FILLED MUST BE ANNOUNCED THROUGH THE STATE AGENCY'S OFFICIAL WEBSITE. ANY
33 CANDIDATE, WHETHER INTERNAL OR EXTERNAL, POSSESSES THE RIGHT TO APPEAL THE
34 DIRECT HIRE.

35 Sec. 2. Short title

36 This act may be cited as the "State Agency Hiring Reform Act".

37 Enroll and engross to conform

38 Amend title to conform

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